Insiza Rural District Council (Mining and Mineral Panning) By-laws, 2025

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 90 of the Rural District Councils Act [*Chapter 29:13*], approved the following by-laws:—

Title

1. These by-laws may be cited as the Insiza Rural District Council (Mining and Mineral Panning) By-laws, 2025.

Application

2.These by-laws shall apply within the Insiza Rural District Council area.

Interpretation

3. In these by-laws—

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"alluvial deposit" means—

(a) in relation to precious stones, any deposit, either non-coherent or consolidated, of any geological age, which has been formed by water or wind;

(b) in relation to any accumulation of sand, gravel or clay deposited by surface water containing valuable minerals;

"council" means Insiza Rural District Council;

"exploration" means geological examination in search of minerals;

"licence" means a licence issued in terms of section 4 which is valid and current;

"licensee" means any person who is the holder of licence;

"licensed premises" means premises in respect of which a licence is issued;

"elution" means a process of extracting one material from another;

"mine" includes any place excavation or working whereon, wherein or whereby any operation in connection with mining purposes is carried on;

"miner" the person actually carrying on the work of mining on any mining location, whether he or she is the holder or the lessee or assignee of the rights of such holder;

"mineral" means—

(a) any substance occurring natural in or on the earth which has been formed by or subjected to a geological process; and

(b) any substance declared to be a mineral in terms of Mines and Minerals Act [*Chapter 21:05*];

"mining" means any act of extracting minerals as defined by these by-laws;

"mineral panning" means the separation of minerals using water.

"prospecting" means the first stage of the geological analysis of a territory in search of minerals;

Submission of prospecting, exploration and mining rights licences to Council

4. (1) All holders of prospecting, exploration and mining rights operating in the Council area shall submit certified copies of their licences to Council.

(2) Any holder of a prospecting, exploration or mining rights operating in the Council area shall—

(a) submit a certified copy of the Environmental Impact Assessment Report, Environmental Management Plan or Environmental Impact Assessment Certificate issued by the Environmental Management Agency in terms of the Environmental Management Act [*Chapter 20:27*];

(b) carry out all relevant mine closure and environmental rehabilitation measures as prescribed by the Environmental Management Act [*Chapter 20:27*].

(3) All the provisions related to applications for mining rights, compensation for acquisition of land for mining purposes and payment of levies to local authorities by holders of mining rights as prescribed in the Mines and Minerals Act [*Chapter 21:05*] shall apply to the Council area with necessary changes.

(4) No person shall pan any mineral in the Council area, except in terms of a licence issued by the Ministry of Mines and Mining Development.

Application for submission of environmental impact assessment plans

5. (1) The developers of any projects in the Council area for which an environmental social impact assessment is required in terms of section 97 and the First Schedule of the Environmental Management Act [*Chapter 20:27*] shall—

(a) submit an application of his or her environmental social impact assessment for consideration by Council upon payment of a fee specified in the First Schedule;

(b) consult Council during the consultation process leading to the development of an environmental impact assessment;

(c) involve Council in organising public consultations meetings in the area regarding the proposed development project;

(d) submit to Council the name, contact details and other relevant particulars such as qualifications of any consultant hired or engaged by the project developer to carry out the environmental impact assessment on his or her behalf and proof of their registration with the Environmental Management Agency;

(e) submit to Council a certified copy of the Environmental Impact Assessment Report for the proposed project;

(f) submit to Council a certified copy of the Environmental Impact Assessment Certificate issued for the project by the Director-General of the Environmental Management Agency;

(g) submit to Council a certified copy of the annual Environmental Management Plan;

(h) submit to Council a certified copy of the siting of works plan.

(2) It is an offence for any miner in a Council area to start operations without submitting to Council a certified copy of the Environmental Impact Assessment Report, or a copy of the Environmental Impact Assessment certificate issued by the Director-General of the Environmental Management Agency or a certified copy of the annual Environmental Management Plan produced by the miner.

(3) Any person who fails to submit the documents required in terms of subsection (2) shall be guilty of an offence and liable to a fine specified in the Second Schedule.

(4) The miner shall submit to Council all relevant information related to quarterly environmental monitoring reports submitted to the Environmental Management Agency, in terms of Section 106 of the Environmental Management Act [*Chapter 20:27*], operating in the Council area.

(5) Council shall take measures to make environmental impact assessment reports submitted by miners available and open for public inspection at all reasonable times at the Council offices upon payment of a fee specified in the First Schedule:

Provided that no person shall use any information contained therein for personal benefit and this has to be done in compliance with Section 108 of the Environmental Management Act [*Chapter 20:27*].

Environmental rehabilitation works on abandonment of project

6. (1) Any person who undertakes any mining projects, resource extraction projects or any other projects for commercial exploitation of natural resources with the effect of causing environmental damage or environmental degradation or harm in the council area shall: —

(a) submit to Council a rehabilitation plan containing rehabilitation works that will be undertaken before abandonment or closure of the project; and

(b) rehabilitate the environment before abandonment or closure of the project.

(2) Council shall monitor the implementation of rehabilitation plans of projects with assistance from the Environmental Management Agency.

(3) Any person who fails to rehabilitate the environment after abandonment or closure of the project shall be guilty of an offence and liable to a fine specified in the Second Schedule.

Environmental Degradation Fund

7. Council shall establish a fund known as the Environmental Degradation Fund into which any person who undertakes any mining activity with the effect of causing environmental degradation shall contribute a fee specified in the First Schedule and obtain a reclamation permit.

Environmental rehabilitation works to be carried out by Council

8. Where a land owner, developer or occupier as the case may be, requests council to carry out environmental rehabilitation works on his or her land, or in the event that the owner fails to do so on his or her own within six months, council may undertake such

environmental rehabilitation works as may be necessary to rehabilitate the environment and recover the costs associated with such works from the land owner or occupier of the land.

Corporate Social Responsibility

9. A memorandum of agreement shall be mutually drawn between the miner and Council on what will be given to the community as corporate social responsibility.

Inspection of mining activities in a council area

10. (1) The officer of a council, the mining commissioner, the inspector of mines, police officer, any agent of the Reserve Bank, any officer of the Natural Resources Board or of the department of National Park and Wild Life of such grade as may be designated by the Secretary for Environment and Tourism or any person authorised by the mining commissioner may do all or any of the following—

(a) ascertain whether those regulations are being complied with by inspecting any mining operations;

(b) ensure that persons operating upon any stretch or stretches of any public stream hold a permit issued in terms of this by-law;

(c) make inquiries in respect of the state or condition of any mining operations and of all matters or things connected to the well-being or safety of persons employed or in any operations contiguous, thereto;

and may, where it appears that this by-law is not being complied with—

(i) give directions to the permit holder as to the proper working of the mineral deposits; or

(ii) recommend to the issuer of the licence to suspension of the operations concerned pending rectification by the miner.

(d) ensure that all mining claims under operation shall be fenced to avoid encroachments by animals;

(e) ensure that all mining shafts shall be timbered to avoid internal collapse and loss of life;

(f) ensure that movement of ores using council roads shall be undertaken after obtaining a permit from Council;

(g) ensure that mining activities shall be done in such a way that does not pollute the environment.

(2) A designated officer shall have access to and inspect any of the records required to be maintained by a council and the miner and the officer shall report any irregularities or breaches of these regulations.

Elution plant

11. Any person who wishes to establish an elution plant is required to obtain a permit after paying a fee specified in the First Schedule.

Payment to local authorities

12. Every miner who has been authorised to conduct mining activities in the Council area shall pay to Council royalties, levies, licence and any other fees approved by Council.

Offences and penalties

13. Any person who contravenes any provision of these by-laws shall be liable to a fine specified in the Second Schedule.

FIRST SCHEDULE

FEES

Section	Description	Fee $
4 and 15	Council land development levies: Artisanal mining Medium scale gold mining Large scale gold mining Milling permit-bow mill Milling permit hammer mill Mining base minerals per unit Gold claims non-producing per claim Base mineral non-producing per block Cyanidation companies Individuals	 0,00 per annum As per 3rd Schedule As per 3rd Schedule 0,00 per annum 0,00 per annum 0,00 per annum 0,00 0,00 0,00 0,00
5	EIA Consultation fee EIA reports inspection	150,00 200,00
6	Environmental rehabilitation levy Artisanal mining: Class A Class B Medium scale gold mining Large scale gold mining Milling permit-bow mill Milling permit hammer mill Mining base minerals per unit Gold claims non-producing per claim Base mineral non-producing per block Cyanidation companies Individuals	 750,00 750,00 750,00 750,00 1 000,00 0,00 0,00 0,00 0,00 0,00 0,00
7	Rehabilitation fund levy	0,00

SECOND SCHEDULE

PENALTIES

Section	*Description of Offence*	*Amount* (USD)
4	Panning any mineral in the Council area without a licence or permit issued by Council and Ministry of Mines and Minerals	500,00
4	Failure by a holder of prospecting, exploration and mining rights operating in the Council area to submit copies of their licences to Council	0,00

Section	*Description of Offence*	*Amount* (USD)
4	Failure to submit a copy of the Environmental Impact Assessment Report, Environmental Management Plan, or Environmental Impact Assessment Certificate issued by the Environmental Management Agency to Council	500,00
6	Failure by owner to reclaim all disused mines and carry out environmental rehabilitation measures	500,00
5	Starting of operations by a project developer without submitting to Council a copy of the Environmental Impact Assessment Report, or a copy of the Environmental Impact Assessment certificate issued by the Director-General of the Environmental Management Agency or a copy of the annual Environmental Management Plan produced by the project developer.	500,00
6	Failure by a project developer to rehabilitate the environment after abandonment or closure of the project	500,00

The fees and penalties are payable in local currency at the prevailing interbank rate.